

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

**RESPONDENT'S MOTION FOR CONFIDENTIAL TREATMENT OF THE EXHIBITS
ATTACHED TO SM LINE CORPORATION'S RESPONSE TO COMPLAINANT'S
MOTION FOR DETERMINATION OF CLAIM OF PRIVILEGE AND
WAIVER OF SAME CONCERNING A SINGLE DOCUMENT PRODUCED**

Respondent SM Line Corporation ("SM Line") hereby moves pursuant to 46 C.F.R. §§ 502.69 and 502.5(b) to seek confidential treatment of Exhibits A, Exhibit B, Exhibit C to SM Line Corporation's Response to Complainant's Motion for Determination of Claim of Privilege and Waiver of Same Concerning a Single Document Produced. ("Response").

Exhibits A, B and C to SM Line's Response contain the transcripts of the depositions of SM Line witnesses that were taken during the course of this proceedings.

Testimonies such as the ones attached to attached to SM Line's Response as Exhibit A, Exhibit B, and Exhibit C are subject to confidentiality subject to the paragraph 1(b) of the Stipulation and Order of Confidentiality dated September 19, 2023.

Respondent file both confidential and public versions of the Exhibits.

For the foregoing reasons, SM Line respectfully requests that:

1. Exhibits A, Exhibit B, and Exhibit C to SM Line's Response, be kept confidential.
2. Be allowed to submit a public redacted version of the material for which it seeks confidentiality pursuant to 46 C.F.R. § 502.5(a)(2).

Dated: January 31, 2024

Respectfully submitted,

/s/Wook Chung

/s/Vincent M. DeOrchis

/s/Kaspar Kielland

/s/Matteo Bonuzzi

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Counsel for Respondent

SM Line Corporation

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 31st day of January 2024, the foregoing document was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

Complainant
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/s/Wook Chung_____